the United States and Spain of April 11, 1899, have preserved their allegiance to the Crown of Spain, may be admitted into Puerto Rico without regard to the provisions of this chapter, except section 221. (May 26, 1926, ch. 400, 44 Stat. 657; May 17, 1932, ch. 190, 47 Stat. 158.)

REFERENCES IN TEXT

In the original "this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this code, see note under section 201 of this title.

SUBCHAPTER IV.—ALIEN VETERANS OF THE WORLD WAR

§ 241. "Alien veteran" defined; definitions of sections 203–205 and 224 of this title adopted.

(a) As used in sections 241–246 and 392a of this title, the term "alien veteran" means an individual, a member of the military or naval forces of the United States at any time after April 5, 1917, and before November 12, 1918, who is now an alien not ineligible to citizenship; but does not include (1) any individual at any time during such period or thereafter separated from such forces under other than honorable conditions, (2) any conscientious objector who performed no military duty whatever or refused to wear the uniform, or (3) any alien at any time during such period or thereafter discharged from the military or naval forces on account of his alienage.

(b) Terms defined in sections 203, 204, 205 and 224 of this title shall, when used in sections 241–246 and 392a of this title, have the meaning assigned to such terms in said sections. (May 26, 1926, ch. 398, § 1, 44 Stat. 654.)

§ 242. Alien veteran as nonquota immigrant; head tax or fees; grounds for exclusion.

An alien veteran shall for the purposes of subchapter III of this chapter be considered as a nonquota immigrant, but shall be subject to all the other provisions of said sections and of the immigration laws, except that—

(a) He shall not be subject to the head tax imposed by section 132 of this title.

(b) He shall not be required to pay any fee under section 202 or section 207 of this title.

(c) If otherwise admissible, he shall not be excluded under section 136 of this title, unless excluded under the provisions of that section relating to—

(1) Persons afflicted with a loathsome or dangerous contagious disease, except tuberculosis in any form.

(2) Polygamy.

(3) Prostitutes, procurers, or other like immoral persons.

(4) Contract laborers.

(5) Persons previously deported.

(6) Persons convicted of crime. (May 26, 1926, ch. 398, § 2, 44 Stat. 654.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this Code, see note under section 201 of this title.

§ 243. Status of child or spouse of "alien veteran."

The unmarried child under eighteen years of age, the wife, or the husband, of an alien veteran shall, for the purposes of subchapter III of this chapter of this title, be considered as a nonquota immigrant when accompanying or following within six months to join him, but shall be subject to all the other provisions of said sections and of the immigration laws. (May 26, 1926, ch. 398, § 3, 44 Stat. 655.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this code, see note under section 201 of this title.

§ 244. Immigration visa; issuance within 1 year.

The provisions of sections 241–243 of this title shall not apply to any alien unless the immigration visa is issued to him before the expiration of one year after May 26, 1926. (May 26, 1926, ch. 398, § 4, 44 Stat. 655.)

§ 245. Deportation as public charge; prohibition.

An alien veteran admitted to the United States under sections 241–246 and 392a of this title shall not be subject to deportation on the ground that he has become a public charge. (May 26, 1926, ch. 398, § 5, 44 Stat. 655.)

§ 246. Person bringing admissible alien veteran to port not subject to fine.

Nothing in the immigration laws shall be construed as subjecting any person to a fine for bringing to a port of the United States an alien veteran who is admissible under the terms of sections 241–246 and 392a of this title, even though such alien would be subject to exclusion if said sections had not been enacted. (May 26, 1926, ch. 398, § 6, 44 Stat. 655.)

Chapter 7.—EXCLUSION OF CHINESE

Sec.

261. Control of exclusion of Chinese.
262. Same; officer enforcing Chinese exclusion law at Washington.
263. Coming of Chinese laborers to United States suspended.
264. Same; exemptions.
265. Chinese other than laborers; certificates of identity.
266. Lists of Chinese passengers by masters of vessels arriving from foreign ports.
267. Same; comparison with certificates before landing allowed.
268. Forfeitures of vessels.
269. Bringing or landing Chinese persons not entitled to enter; penalty.
270. Certificates of identity under act May 6, 1882, void.
271. Chinese not to enter by land without certificate; payment of charges for maintenance or return of Chinese persons.
272. Persons exempted from application of exclusion law.
273. Persons to whom exclusion law is applicable; "Chinese laborers" defined.
274. Violations of law punishable.
275 Return of Chinese laborers after departure permitted conditionally.
276. Same; conditions under which they may return.
277. Same; identification of laborers; certificates; ports of entry.
278. Same; regulations.
279. Same; landing Chinese in contravention of law.
280. Same; masters of vessels in distress excepted from penalty prescribed.

281. Same; altering name in or forging certificate, or false personation.
282. Same; arrest and removal of Chinese unlawfully in United States.
283. Same; diplomatic and consular officers excepted.
284. Arrested person to prove right to remain.
285. Removal of Chinese not entitled to be or remain in United States.
286. Habeas corpus by Chinese denied landing; bail.
287. Certificates of residence; arrest and deportation of laborers without.
288. Regulations for execution of sections 281 and 284–287.
289. "Laborer" and "merchant" defined; proof for entrance of merchant.
290. Commissioner for hearing on arrest of Chinese persons.
291. Same; fees.
292. Warrants of arrest.
293. Exclusion of Chinese from Hawaii; entry into United States from Hawaii.
294. Certificates of residence for Chinese in Hawaii at time of annexation.
295. Laws made applicable to island territory.
296. Regulations for execution of law.
297. Certificates of residence in insular territory; regulations for Philippines.
298. Bertillon system of identification.
299. Deportation officer.

§ 261. Control of exclusion of Chinese.

The authority, power, and jurisdiction by virtue of any law in relation to the exclusion from and the residence within the United States, its territories and the District of Columbia, of Chinese and persons of Chinese descent, are conferred upon the Attorney General, and the authority, power, and jurisdiction in relation thereto previously vested by law or treaty in the collectors of customs and the collectors of internal revenue, are vested in such officers under the control of the Commissioner of Immigration and Naturalization, as the Attorney General may designate therefor. (Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 262. Same; officer enforcing Chinese exclusion law at Washington.

Nothing in sections 39 or 46 of Title 5 shall be construed to prevent the Attorney General from detailing one officer employed in the enforcement of the Chinese exclusion laws for duty at the Department of Justice at Washington. (June 6, 1900, ch. 791, § 1, 31 Stat. 611; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 263. Coming of Chinese laborers to United States suspended.

The coming of Chinese laborers to the United States is suspended, and it shall not be lawful for any Chinese laborer to come from any foreign port or place, or having so come to remain within the United States. (May 6, 1882, ch. 126, § 1, 22 Stat. 58; July 5, 1884, ch. 220, 23 Stat. 115; May 5, 1892, ch. 60, § 1, 27 Stat. 25; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

Cross Reference

Diplomatic and other officers of Chinese or other Governments traveling on business of that Government exempted from application of exclusion laws, see section 272 of this title.

§ 264. Same; exemptions.

Section 263 of this title shall not apply to Chinese laborers who were in the United States on the 17th day of November 1880 or who came into the same before the expiration of ninety days after May 6, 1882, nor shall sections 263 and 279 of this title apply to Chinese laborers, who shall produce to such master before going on board such vessel, and shall produce to such officer under the control of the Commissioner of Immigration and Naturalization, as the Attorney General may designate therefor, at the port in the United States at which such vessel shall arrive, the evidence hereinafter in sections 263–269, 271–274, 280, 281 and 303 of this title required of his being one of the laborers in this section mentioned. (May 6, 1882, ch. 126, § 3, 22 Stat. 59; July 5, 1884, ch. 220, 23 Stat. 115; Sept. 13, 1888, ch. 1015, § 10, 25 Stat. 478; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 265. Chinese other than laborers; certificates of identity.

Every Chinese person, other than a laborer, who may be entitled to come within the United States, and who shall be about to come to the United States, shall obtain the permission of and be identified as so entitled by the Chinese Government, or of such other foreign government of which at the time such Chinese person shall be a subject, in each case to be evidenced by a certificate issued by such government, which certificate shall be in the English language, and shall show such permission, with the name of the permitted person in his or her proper signature, and which certificate shall state the individual, family, and tribal name in full, title or official rank, if any, the age, height, and all physical peculiarities, former and present occupation or profession, when and where and how long pursued, and place of residence of the person to whom the certificate is issued, and that such person is entitled by this section to come within the United States. If the person so applying for a certificate shall be a merchant, said certificate shall, in addition to above requirements, state the nature, character, and estimated value of the business carried on by him prior to and at the time of his application as aforesaid. Nothing in this section shall be construed as embracing within the meaning of the word "merchant", hucksters, peddlers, or those engaged in taking, drying, or otherwise preserving shell or other fish for home consumption or exportation. If the certificate be sought for the purpose of travel for curiosity, it shall also state whether the applicant intends to pass through or travel within the United States, together with his financial standing in the country from which such certificate is desired. The certificate provided for in this section, and the identity of the person named therein shall, before such person goes on board any vessel to proceed to the United States, be visaed by the indorsement of the diplo-

matic representatives of the United States in the foreign country from which said certificate issues, or of the consular representative of the United States at the port or place from which the person named in the certificate is about to depart; and such diplomatic representative or consular representative whose indorsement is so required is empowered, and it shall be his duty, before indorsing such certificate as aforesaid, to examine into the truth of the statements set forth in said certificate, and if he shall find upon examination that said or any of the statements therein contained are untrue it shall be his duty to refuse to indorse the same. Such certificate visaed as aforesaid shall be prima facie evidence of the facts set forth therein, and shall be produced to such officer under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor, and afterward produced to the proper authorities of the United States whenever lawfully demanded, and shall be the sole evidence permissible on the part of the person so producing the same to establish a right of entry into the United States; but said certificate may be controverted and the facts therein stated disproved by the United States authorities. (May 6, 1882, ch. 126, § 6, 22 Stat. 60; July 5, 1884, ch. 220, 23 Stat. 116; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 266. Lists of Chinese passengers by masters of vessels arriving from foreign ports.

The master of any vessel arriving in the United States from any foreign port or place shall, at the same time he delivers a manifest of the cargo, and if there be no cargo, then at the time of making a report of the entry of the vessel pursuant to law, in addition to the other matter required to be reported, and before landing, or permitting to land, any Chinese passengers, deliver and report to such officer under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor a separate list of all Chinese passengers taken on board his vessel at any foreign port or place, and all such passengers on board the vessel at that time, such list shall show the names of such passengers (and if accredited officers of the Chinese or of any other foreign government, traveling on the business of that government, or their servants, with a note of such facts), and the names and other particulars as shown by their respective certificates; and such list shall be sworn to by the master in the manner required by law in relation to the manifest of the cargo. Any refusal or willful neglect of any such master to comply with the provisions of this section shall incur the same penalties and forfeiture as are provided for a refusal or neglect to report and deliver a manifest of the cargo. (May 6, 1882, ch. 126, § 8, 22 Stat. 60; July 5, 1884, ch. 220, 23 Stat. 117; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 267. Same; comparison with certificates before landing allowed.

Before any Chinese passengers are landed from any such vessel, such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor shall proceed to examine such passengers, comparing the certificates with the list and with the passengers; and no passenger shall be allowed to land in the United States from such vessel in violation of law. (May 6, 1882, ch. 126, § 9, 22 Stat. 60; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 268. Forfeitures of vessels.

Every vessel whose master shall knowingly violate any of the provisions of sections 263–269, 271–274, 280, 281, and 363 of this title shall be deemed forfeited to the United States, and shall be liable to seizure and condemnation in any district of the United States into which such vessel may enter or in which she may be found. (May 6, 1882, ch. 126, § 10, 22 Stat. 61; July 5, 1884, ch. 220, 23 Stat. 117.)

§ 269. Bringing or landing Chinese persons not entitled to enter; penalty.

Any person who shall knowingly bring into or cause to be brought into the United States by land, or who shall aid or abet the same, or aid or abet the landing in the United States from any vessel, of any Chinese person not lawfully entitled to enter the United States, shall be deemed guilty of a misdemeanor and shall, on conviction thereof, be fined in a sum not exceeding $1,000, and imprisoned for a term not exceeding one year. (May 6, 1882, ch. 120, § 11, 22 Stat. 61; July 5, 1884, ch. 220, 23 Stat. 117.)

§ 270. Certificates of identity under Act May 6, 1882, void.

Section, act Oct. 1, 1888, ch. 1064, § 2, 25 Stat. 504, invalidated certain certificates of identification issued to Chinese laborers entering the United States prior to October 1, 1888.

§ 271. Chinese not to enter by land without certificate; payment of charges for maintenance or return of Chinese persons.

No Chinese person shall be permitted to enter the United States by land without producing to the proper officer as mentioned in section 265 of this title the certificate required by said section of Chinese persons seeking to land from a vessel, and the United States shall pay all costs and charges for the maintenance and return of any Chinese person having the certificate prescribed by law as entitling such Chinese person to come into the United States, who may not have been permitted to land from any vessel by reason of any provision of sections 263–269, 271–274, 280, 281, and 363 of this title. All charges for maintenance or return of Chinese persons applying for admission to the United States shall be paid or reimbursed to the United States by the person, company, partnership, or corporation bringing such Chinese to a port of the United States as applicants for admission. (May 6, 1882, ch. 126, § 12, 22 Stat. 61; July 5, 1884, ch. 220, 23 Stat. 117; Sept. 13, 1888,

ch. 1015, § 13, 25 Stat. 479; Aug. 24, 1912, ch. 355, § 1, 37 Stat. 476.)

§ 272. Persons exempted from application of exclusion law.

The provisions of sections 263–269, 271–274, 280, 281, and 363 of this title shall not apply to diplomatic and other officers of the Chinese or other Governments traveling upon the business of that Government, whose credentials shall be taken as equivalent to the certificate mentioned therein, and shall exempt them and their body and household servants from the provisions of such sections as to other Chinese persons. (May 6, 1882, ch. 126, § 13, 22 Stat. 61; July 5, 1884, ch. 220, 23 Stat. 118.)

§ 273. Persons to whom exclusion law is applicable; "Chinese laborers" defined.

The provisions of sections 263–269, 271–274, 280, 281, and 363 of this title shall apply to all subjects of China and Chinese, whether subjects of China or any other foreign power; and the words Chinese laborers, wherever used in said sections, shall be construed to mean both skilled and unskilled laborers and Chinese employed in mining. (May 6, 1882, ch. 126, § 15, 22 Stat. 61; July 5, 1884, ch. 220, 23 Stat. 118.)

§ 274. Violations of law punishable.

Any violation of any of the provisions of sections 263–269, 271–274, 280, 281 and 363 of this title, the punishment of which is not otherwise herein provided for, shall be deemed a misdemeanor, and shall be punishable by a fine not exceeding $1,000, or by imprisonment for not more than one year, or both such fine and imprisonment. (May 6, 1882, ch. 126, § 16; July 5, 1884, ch. 220, 23 Stat. 118.)

§ 275. Return of Chinese laborers after departure permitted conditionally.

No Chinese laborer in the United States shall be permitted, after having left, to return thereto, except under the conditions stated in sections 276 and 277 of this title. (Sept. 13, 1888, ch. 1015, § 5, 25 Stat. 477; Oct. 1, 1888, ch. 1064, § 1, 25 Stat. 504; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

§ 276. Same; conditions under which they may return.

No Chinese laborer within the purview of section 275 of this title shall be permitted to return to the United States unless he has a lawful wife, child, or parent in the United States, or property therein of the value of $1,000, or debts of like amount due him and pending settlement. The marriage to such wife must have taken place at least a year prior to the application of the laborer for a permit to return to the United States, and must have been followed by the continuous cohabitation of the parties as man and wife.

If the right to return be claimed on the ground of property or of debts, it must appear that the property is bona fide and not colorably acquired for the purpose of evading the provisions of this section, or that the debts are unascertained and unsettled, and not promissory notes or other similar acknowledgments of ascertained liability. (Sept. 13, 1888, ch. 1015, § 6, 25 Stat. 477; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

§ 277. Same; identification of laborers; certificates; ports of entry.

A Chinese person claiming the right to be permitted to leave the United States and return thereto on any of the grounds stated in the foregoing section, shall apply to such officer under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor, of the district from which he wishes to depart at least a month prior to the time of his departure, and shall make on oath before the said officer a full statement descriptive of his family, or property, or debts, as the case may be, and shall furnish to said officer such proofs of the facts entitling him to return as shall be required by the rules and regulations prescribed from time to time by the Attorney General, and for any false swearing in relation thereto he shall incur the penalties of perjury. He shall also permit the officer to take a full description of his person, which description such officer shall retain and mark with a number. And if, after hearing the proofs and investigating all the circumstances of the case, such officer shall decide to issue a certificate of return, he shall at such time and place as he may designate, sign and give to the person applying, a certificate containing the number of the description last aforesaid, which shall be the sole evidence given to such person of his right to return. If this last-named certificate be transferred, it shall become void, and the person to whom it was given shall forfeit his right to return to the United States. The right to return under the said certificate shall be limited to one year; but it may be extended for an additional period, not to exceed a year, in cases where, by reason of sickness or other cause of disability beyond his control, the holder thereof shall be rendered unable sooner to return, which facts shall be fully reported to and investigated by the consular representative of the United States at the port or place from which such laborer departs for the United States, and certified by such representative of the United States to the satisfaction of such officer under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor at the port where such Chinese person shall seek to land in the United States, such certificate to be delivered by said representative to the master of the vessel on which he departs for the United States. And no Chinese laborer shall be permitted to reenter the United States without producing to the proper officer at the port of such entry the return certificate herein required. A Chinese laborer possessing a certificate under this section shall be admitted to the United States only at the port from which he departed therefrom, and no Chinese person, except Chinese diplomatic or consular officers, and their attendants, shall be permitted to enter the United States except at the ports of San Francisco, Portland, Oregon, Boston, New York, New

Orleans, Port Townsend, or such other ports as may be designated by the Attorney General. (Sept. 13, 1888, ch. 1015, § 7, 25 Stat. 477; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Apr. 27, 1904, ch. 1630, § 5, 33 Stat 428; Mar. 4, 1913, ch. 141, § 8, 37 Stat. 738; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 278. Same; regulations.

The Attorney General is authorized and empowered to make and prescribe, and from time to time to change and amend such rules and regulations, not in conflict with sections 275–283 of this title as he may deem necessary and proper to conveniently secure to such Chinese persons as are provided for in articles 2 and 3 of the unratified treaty between the United States and the Empire of China, signed March 12, 1888, the rights therein mentioned, and such as shall also protect the United States against the coming and transit of persons not entitled to the benefit of the provisions of said articles. And he is further authorized and empowered to prescribe the form and substance of certificates to be issued to Chinese laborers under and in pursuance of the provisions of said articles, and prescribe the form of the record of such certificate and of the proceedings for issuing the same, and he may require the deposit, as a part of such record, of the photograph of the party to whom any such certificate shall be issued. (Sept. 13, 1888, ch. 1015, § 8, 25 Stat. 478; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 279. Same; landing Chinese in contravention of law.

The master of any vessel who shall knowingly bring within the United States on such vessel, and land, or attempt to land, or permit to be landed any Chinese laborer or other Chinese person, in contravention of the provisions of sections 275–283 of this title, shall be deemed guilty of a misdemeanor and, on conviction thereof, shall be punished with a fine of not less than $500 nor more than $1,000, in the discretion of the court, for every Chinese laborer or other Chinese person so brought, and may also be imprisoned for a term of not less than one year, nor more than five years, in the discretion of the court. (Sept. 13, 1888, ch. 1015, § 9, 25 Stat. 478; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

CROSS REFERENCE

Offenses punishable by death or imprisonment for term exceeding one year deemed felonies, see section 541 of Title 18, Criminal Code and Criminal Procedure.

§ 280. Same; masters of vessels in distress excepted from penalty prescribed.

The provisions of section 279 of this title shall not apply to the case of any master whose vessel shall come within the jurisdiction of the United States in distress or under stress of weather, or touching at any port of the United States on its voyage to any foreign port or place. But Chinese laborers or persons on such vessels shall not be permitted to land, except in case of necessity, and must depart with the vessel on leaving port. (May 6, 1882, ch. 126, § 3, 22 Stat. 59; July 5, 1884, ch. 220, 23 Stat. 115; Sept. 13, 1888, ch. 1015, § 10, 25 Stat. 478; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

§ 281. Same; altering name in or forging certificate, or false personation.

Any person who shall knowingly and falsely alter or substitute any name for the name written in any certificate under sections 265, 277, and 287 of this title, or forge such certificate, or knowingly utter any forged or fraudulent certificate, or falsely personate any person named in any such certificate, and any person other than the one to whom a certificate was issued who shall falsely present any such certificate, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined in a sum not exceeding $1,000, and imprisoned in a penitentiary for a term of not more than five years. (Sept. 13, 1888, ch. 1015, § 11, 25 Stat. 478; May 6, 1892, ch. 126, § 7, 22 Stat. 60; May 5, 1892, ch. 60, § 8, 27 Stat. 26; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

CROSS REFERENCE

Offenses punishable by death or imprisonment for term exceeding one year deemed felonies, see section 541 of Title 18, Criminal Code and Criminal Procedure.

§ 282. Same; arrest and removal of Chinese unlawfully in United States.

Any Chinese person, or person of Chinese descent, found unlawfully in the United States, or its Territories, may be arrested upon a warrant issued upon a complaint, under oath, filed by any party on behalf of the United States, by any justice, judge, or commissioner of any United States court, returnable before any justice, judge, or commissioner of a United States court, or before any United States court, and when convicted, upon a hearing, and found and adjudged to be one not lawfully entitled to be or remain in the United States, such person shall be removed from the United States to the country whence he came. But any such Chinese person convicted before a commissioner of a United States court may, within ten days from such conviction, appeal to the judge of the district court for the district. A certified copy of the judgment shall be the process upon which said removal shall be made, and it may be executed by the marshal of the district or any officer having authority of a marshal under the provisions of this section. And in all such cases the person who brought or aided in bringing such person into the United States shall be liable to the Government of the United States for all necessary expenses incurred in such investigation and removal; and all peace officers of the several States and Territories of the United States are invested with the same authority in reference to carrying out the provisions of sections 275–283 of this title, as a marshal or deputy marshal of the United States, and shall be entitled to the same fees as compensation as marshals and deputy marshals are authorized to charge and collect, to be audited and paid by the same officers. (Sept. 13,

1888, ch. 1015, § 13, 25 Stat. 479; May 5, 1892, ch. 60, § 2, 27 Stat. 25; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428.)

CROSS REFERENCE

Removal of Chinese not entitled to be or remain in United States, see section 285 of this title.

FEDERAL RULES OF CIVIL PROCEDURE

Application of, see Rule 81, following section 723c of Title 28, Judicial Code and Judiciary.

§ 283. Same; diplomatic and consular officers excepted.

Sections 275–282 of this title shall not apply to Chinese diplomatic or consular officers or their attendants, who shall be admitted to the United States under special instructions of the Department of Justice, without production of other evidence than that of personal identity. (Sept. 13, 1888, ch. 1015, § 14, 25 Stat. 479; Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 284. Arrested person to prove right to remain.

Any Chinese person or person of Chinese descent arrested under the provisions of this chapter shall be adjudged to be unlawfully within the United States unless such person shall establish, by affirmative proof, to the satisfaction of the justice, judge, or commissioner before whom he is tried, his lawful right to remain in the United States. (May 5, 1892, ch. 60, § 3, 27 Stat. 25.)

§ 285. Removal of Chinese not entitled to be or remain in United States.

Any Chinese person or person of Chinese descent, when convicted and adjudged to be not lawfully entitled to be or remain in the United States, shall be removed from the United States to China, unless he or they shall make it appear to the justice, judge, or commissioner before whom he or they are tried that he or they are subjects or citizens of some other country, in which case he or they shall be removed from the United States to such country: *Provided*, That in any case where such other country of which such Chinese person shall claim to be a citizen or subject shall demand any tax as a condition of the removal of such person to that country, he or she shall be removed to China. (May 5, 1892, ch. 60, § 2, 27 Stat. 25.)

§ 286. Habeas corpus by Chinese denied landing; bail.

On an application to any judge or court of the United States in the first instance for a writ of habeas corpus, by a Chinese person seeking to land in the United States, to whom that privilege has been denied, no bail shall be allowed, and such application shall be heard and determined promptly without unnecessary delay. (May 5, 1892, ch. 60, § 5, 27 Stat. 25.)

CROSS REFERENCES

Board of Special Inquiry to have authority to determine whether an alien shall be allowed to land or shall be deported, see section 153 of this title.

Decision of immigration officer excluding alien to be final unless reversed on appeal to Attorney General, see section 174 of this title.

§ 287. Certificates of residence; arrest and deportation of laborers without.

It shall be the duty of all Chinese laborers within the limits of the United States who were entitled to remain in the United States before May 5, 1892, to apply to such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor, of their respective districts within six months after November 3, 1893, for a certificate of residence; and any Chinese laborer within the limits of the United States who shall be found within the jurisdiction of the United States without such certificate of residence, shall be deemed and adjudged to be unlawfully within the United States, and may be arrested by any such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor, United States marshal or his deputies, and taken before a United States judge, whose duty it shall be to order that he be deported from the United States, as provided hereafter; unless he shall establish clearly to the satisfaction of said judge that by reason of accident, sickness, or other unavoidable cause he has been unable to procure his certificate, and to the satisfaction of said United States judge, and by at least one credible witness other than Chinese, that he was a resident of the United States on the 5th of May 1892; and if, upon the hearing, it shall appear that he is so entitled to a certificate, it shall be granted upon his paying the cost. Should it appear that said Chinaman had procured a certificate which has been lost or destroyed, he shall be detained and judgment suspended a reasonable time to enable him to procure a duplicate from the officer granting it, and in such cases the cost of said arrest and trial shall be in the discretion of the court; and any Chinese person, other than a Chinese laborer, having a right to be and remain in the United States, desiring such certificate as evidence of such right, may apply for and receive the same without charge. No Chinese person convicted in any court of the States or Territories prior to November 3, 1893, or of the United States of a felony shall be permitted to register under the provisions of this section; but all such persons who were subject to deportation at that date for failure or refusal to comply with this section shall be deported from the United States as provided, upon any appropriate proceedings pending or which may be hereafter instituted. The order of deportation shall be executed by the United States marshal of the district within which such order is made and he shall execute same with all convenient despatch. Pending the execution of such order, such Chinese person shall remain in the custody of the United States marshal and shall not be admitted to bail. (May 5, 1892, ch. 60, § 6, 27 Stat. 25; Nov. 3, 1893, ch. 14, §§ 1, 2, 28 Stat. 7, 8; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 288. Regulations for execution of sections 281 and 284–287.

The Attorney General shall make such rules and regulations as may be necessary for the efficient execution of this section and sections 281 and 284–287 of this title, and shall prescribe the necessary forms and furnish the necessary blanks to enable such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General shall designate therefor to issue the certificates required hereby, and make such provisions that certificates may be procured in localities convenient to the applicants, such certificates shall be issued without charge to the applicant, and shall contain the name, age, local residence, and occupation of the applicant, and such other description of the applicant as shall be prescribed by the Attorney General, and a duplicate thereof shall be filed in the office of such officer for the district within which such Chinaman makes application. (May 5, 1892, ch. 60, § 7, 27 Stat. 26; Mar. 4, 1913, ch. 141, § 8, 37 Stat. 738; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 289. "Laborer" and "merchant" defined; proof for entrance of merchant.

The words "laborer" or "laborers", wherever used in sections 281 and 284–288 of this title, shall be construed to mean both skilled and unskilled manual laborers, including Chinese employed in mining, fishing, huckstering, peddling, laundrymen, or those engaged in taking, drying, or otherwise preserving shell or other fish for home consumption or exportation.

The term "merchant", as employed in sections 281 and 284–288 of this title, shall have the following meaning and none other: A merchant is a person engaged in buying and selling merchandise, at a fixed place of business, which business is conducted in his name, and who during the time he claims to be engaged as a merchant, does not engage in the performance of any manual labor, except such as is necessary in the conduct of his business as such merchant.

Where an application is made by a Chinaman for entrance into the United States on the ground that he was formerly engaged in this country as a merchant, he shall establish by the testimony of two credible witnesses other than Chinese the fact that he conducted such business as hereinbefore defined for at least one year before his departure from the United States, and that during such year he was not engaged in the performance of any manual labor, except such as was necessary in the conduct of his business as such merchant, and in default of such proof shall be refused landing.

The certificate provided for in section 287 of this title shall contain the photograph of the applicant, together with his name, local residence and occupation, and a copy of such certificate, with a duplicate of such photograph attached, shall be filed in the office of such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General shall designate therefor.

Such photographs in duplicate shall be furnished by each applicant in such form as may be prescribed by the Attorney General. (Nov. 3, 1893, ch. 14, § 2, 28 Stat. 8; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 290. Commissioner for hearing on arrest of Chinese persons.

It shall be lawful for the district attorney of the district in which any Chinese person may be arrested for being found unlawfully within the United States, or having unlawfully entered the United States, to designate the United States commissioner within such district before whom such Chinese person shall be taken for hearing. (Mar. 3, 1901, ch. 845, § 1, 31 Stat. 1093.)

§ 291. Same; fees.

A United States commissioner shall be entitled to receive a fee of $5 for hearing and deciding a case arising under the Chinese-exclusion laws. (Mar. 3, 1901, ch. 845, § 2, 31 Stat. 1093.)

§ 292. Warrants of arrest.

No warrant of arrest for violations of the Chinese-exclusion laws shall be issued by United States commissioners excepting upon the sworn complaint of a United States district attorney, assistant United States district attorney, such officers under the control of the Commissioner of Immigration and Naturalization as the Attorney General may designate therefor, or immigration inspector, United States marshal, or deputy United States marshal, or Chinese inspector, unless the issuing of such warrant of arrest shall first be approved or requested in writing by the United States district attorney of the district in which issued. (Mar. 3, 1901, ch. 845, § 3, 31 Stat. 1093; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 293. Exclusion of Chinese from Hawaii; entry into United States from Hawaii.

There shall be no immigration of Chinese into the Hawaiian Islands, except upon such conditions as are now or may hereafter be allowed by the laws of the United States; no Chinese, by reason of anything contained in the joint resolution providing for the annexing of the Hawaiian Islands approved July 7, 1898, shall be allowed to enter the United States from the Hawaiian Islands. (July 7, 1898, No. 55, § 1, 30 Stat. 751.)

§ 294. Certificates of residence for Chinese in Hawaii at time of annexation.

Chinese in the Hawaiian Islands on April 30, 1900, may within one year thereafter obtain certificates of residence as required by section 287 of this title, and until the expiration of said year shall not be deemed to be unlawfully in the United States if found therein without such certificates. No Chinese laborer, whether he shall hold such certificate or not,

shall be allowed to enter any State, Territory, or District of the United States from the Hawaiian Islands. (Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161.)

§ 295. Laws made applicable to island territory.

The provisions of law contained in this chapter shall apply to the island territory under the jurisdiction of the United States, and prohibit the immigration of Chinese laborers, not citizens of the United States, from such island territory to the mainland territory of the United States, whether in such island territory at the time of cession or not, and from one portion of the island territory of the United States to another portion of said island territory; but they shall not apply to the transit of Chinese laborers from one island to another island of the same group; and any islands within the jurisdiction of any State or the Territory of Alaska shall be considered a part of the mainland under this section. (Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch 1630, § 5, 33 Stat. 428.)

§ 296. Regulations for execution of law.

The Attorney General is authorized and empowered to make and prescribe, and from time to time to change, such rules and regulations not inconsistent with the laws of the land as he may deem necessary and proper to execute the provisions of this chapter, and with the approval of the President to appoint such agents as he may deem necessary for the efficient execution of this chapter. (Apr. 29, 1902, ch. 641, § 2, 32 Stat. 176; Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 297. Certificates of residence in insular territory; regulations for Philippines.

It shall be the duty of every Chinese laborer, other than a citizen, rightfully in, and entitled to remain in any of the insular territory of the United States on April 29, 1902 (Hawaii excepted), to obtain within one year thereafter a certificate of residence in the insular territory wherein he resides, which certificate shall entitle him to residence therein, and upon failure to obtain such certificate as herein provided he shall be deported from such insular territory; and the Philippine Legislature is authorized and required to make all regulations and provisions necessary for the enforcement of this section in the Philippine Islands, including the form and substance of the certificate of residence so that the same shall clearly and sufficiently identify the holder thereof and enable officials to prevent fraud in the transfer of the same: *Provided, however,* That if said Philippine Commission shall find that it is impossible to complete the registration herein provided for within one year from April 29, 1902, said Commission is hereby authorized and empowered to extend the time for such registration for a further period not exceeding one year. (Apr. 29, 1902, ch. 641, § 4, 32 Stat. 177; Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548.)

§ 298. Bertillon system of identification.

So much of the amounts appropriated to prevent unlawful entry of Chinese into the United States, by the appointment of suitable officers to enforce the laws in relation thereto, and for expenses of returning to China all Chinese persons found to be unlawfully in the United States, including the cost of imprisonment and actual expense of conveyance of Chinese persons to the frontier or seaboard for deportation or for similar purposes, as may be necessary shall be available for the establishment and maintenance of the Bertillon system of identification at the various ports of entry; but the foregoing provision shall not apply to officials, teachers, students, merchants, or travelers for curiosity or pleasure, or Chinese laborers in transit across the territory of the United States in the course of their journey to or from other countries. (Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478.)

§ 299. Deportation officer.

All Chinese persons ordered deported under judicial writs shall be delivered by the marshal of the district or his deputy into the custody of any officer designated for that purpose by the Attorney General, for conveyance to the frontier or seaboard for deportation in the same manner as aliens deported under the immigration laws. (June 23, 1913, ch. 3, § 1, 38 Stat. 65; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary immigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor, owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies", to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

DERIVATION

Acts Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340; Feb. 9, 1869, ch. 24, 15 Stat. 269.

§ 332. Same; forfeiture of vessels.

If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade", so called, contrary to the provisions of section 331 of this title, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district